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[TENTATIVE] ORDER SUSTAINING THE DEMURRER WITHOUT LEAVE TO AMEND and DENYING MOTION TO STRIKE AS MOOT

I. INTRODUCTION

This is an action involving alleged unpaid wages and unpaid business reimbursements. Plaintiff Danny Alvarado ("Plaintiff") filed a complaint against Defendants the Estate of Sheila Toabe Davis, Mindy Toabe ("Toabe"), as Trustee of the I. The Sheila Toabe Davis Living Trust, Dated November 13, 1991, and Does 1 through 20 on December 30, 2024. Plaintiff alleges his friend Sheila Toabe Davis moved into an assisted care living facility, and in or around July 2022, hired Plaintiff as a live-in property manager to manage and maintain her property located at 7913 Vantage Avenue, North Hollywood, California 91605 ("Trust Property"). Sheila Toabe Davis passed at the end of 2023. Plaintiff alleges he continued his employment and performed tasks requested by Toabe.

On December 30, 2024, Plaintiff commenced this action. On March 19, 2026, Plaintiff filed the operative FAC, asserting causes of action for: (1) Failure to Pay Wages; (2) Failure to Pay Overtime Wages; (3) Failure to Reimburse Business Expenses; (4) Failure to Provide Meal Periods; (5) Failure to Furnish Accurate Itemized Wage Statements; (6) Breach of Contract; and (7) Breach of the Implied Covenant of Good Faith and Fair Dealing.

On May 5, 2026, Defendants filed the instant demurrer and motion to strike the FAC. Plaintiff filed an opposition on June 26, 2026, and Defendants filed a reply on July 24, 2026.

Request for judicial notice

Defendants request judicial notice of the Superior Court for the State of California, County of Los Angeles, Case No. 24STPB00424, titled in re: The Sheila Toabe Davis Living Trust Dated November 13, 1991. The Court GRANTS the request pursuant to Evidence Code section 452, subdivisions (c) and (d).

Meet and confer

Pursuant to Code of Civil Procedure section 430.41, subdivision (a), the demurring party is required to meet and confer with the party who filed the pleading at least five days before the responsive pleading is due. This must occur in person, telephone or by video conference with the aim of resolving any objections raised in the demurrer. Additionally, the demurring party must file and serve a declaration detailing the meet and confer efforts. It should be noted, however, that the failure to meet and confer is not itself grounds for sustaining or overruling a demurrer or granting or denying a motion to strike. (Code Civ. Proc.,

§§ 430.41, subd. (a)(4), 435.5, subd. (a)(4).)

Here, Defendants' counsel declares he sent Plaintiff's counsel a letter outlining deficiencies on April 22, 2026, and Plaintiff's counsel did not respond. (Hashemi Decl., ¶ 9.) This does not satisfy the meet and confer requirements of Code of Civil Procedure sections 430.41 and 435.5. Nevertheless, the Court exercises its discretion to consider the demurrer and motion to strike on the merits.

II. LEGAL STANDARD

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.)

CCP section 430.10(f) provides that a pleading is uncertain if it is ambiguous and unintelligible. (See Code Civ. Proc., § 430.10(f).) "A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616.) "A demurrer for uncertainty will be sustained only where the complaint is so bad that defendant cannot reasonably respond—i.e., he or she cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her." (Weil & Brown, Civil Procedure Before Trial (The Rutter Group) § 7:85 (emphasis in original).) "The objection of uncertainty does not go to the failure to allege sufficient facts." (Brea v. McGlashan (1934) 3 Cal.App.2d 454, 459.) "It goes to the doubt as to what the pleader means by the facts alleged." (Id.) "Such a demurrer should not be sustained where the allegations of the complaint are sufficiently clear to apprise the defendant of the issues which he is to meet." (People v. Lim (1941) 18 Cal.2d 872, 882.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 349 [court shall not "sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment"]; Kong v. City of Hawaiian Gardens Redevelopment Agency (2002) 108 Cal.App.4th 1028, 1037 ["A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment."]; Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 ["When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend."].) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

Further, the court may, upon motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) The grounds for a motion to strike are that the pleading has irrelevant, false, or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

Civ. Code §3294:

(a) In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant.¿

(c) As used in this section, the following definitions shall apply:

(1) "Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.¿

(2) "Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

(3) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

III. ANALYSIS

Defendants demur to the FAC in its entirety. First, Defendants contend the entire action is barred by the one-year statute of limitations under Code of Civil Procedure section 366.2. Defendants further demur for failure to state facts sufficient to constitute a cause of action and on the ground of uncertainty. The Court finds that the FAC is time barred.

Defendant contends the entire FAC is barred by Code of Civil Procedure section 366.2 because Plaintiff did not commence this civil action until December 30, 2024, more than one year after Sheila Davis died on December 9, 2023. (Demurrer, p. 5.)

Plaintiff does not dispute that the present civil action was not filed until December 30, 2024. Instead, Plaintiff argues his claims were timely preserved because, before expiration of the one-year limitations period, he filed his probate claim materials on March 22, 2024, filed a creditor's claim on July 1, 2024, and appeared at the November 18, 2024 probate hearing, where the probate court allegedly instructed him to pursue his claims in civil court. Plaintiff contends that, in reliance on that instruction, he thereafter commenced the present civil action on December 30, 2024. Further, Plaintiff contends that because the original civil action was commenced on December 30, 2024, the First Amended Complaint, filed on March 19, 2026, relates back to the filing of the original complaint, thereby rendering all causes of action timely and not barred by Code of Civil Procedure section 366.2. (Opposition, pp. 5-7.)

Under Code of Civil Procedure section 366.2, where a person dies before expiration of the applicable limitations period, "an action may be commenced within one year after the date of death," and, except for limited statutory exceptions, that one-year period "shall not be tolled or extended for any reason." (Code Civ. Proc., § 366.2, subds. (a), (b).) California courts have repeatedly recognized section 366.2 as establishing a strict limitations period intended to facilitate the prompt administration of decedents' estates. (Bradley v. Breen (1999) 73 Cal.App.4th 798, 803-805.)

The FAC alleges that Decedent's health declined and that she died on December 19, 2023. (FAC, ¶ 23.) The original Complaint was filed on December 30, 2024, and the FAC was filed on March 19, 2026. Thus, based on the allegations of the FAC and the judicially noticeable records, the action appears untimely under Code of Civil Procedure section 366.2 unless Plaintiff demonstrates that one of the limited statutory exceptions applies.

The question, therefore, is whether Plaintiff's filings in the probate matter satisfied one of the limited statutory exceptions preserving his claims under Code of Civil Procedure section 366.2. Section 366.2 provides that the one-year limitations period "shall not be tolled or extended for any reason" except as provided in limited statutory exceptions, including creditor claims in the administration of estates under Part 4 (commencing with Probate Code section 9000) and claims against the revocable trust of a deceased settlor under Part 8 (commencing with Probate Code section 19000) of Division 9 of the Probate Code. (Code Civ. Proc., § 366.2, subd. (b).)

Defendant argues the probate proceeding upon which Plaintiff relies was opened solely to appoint a successor trustee under Probate Code section 17200, subdivision (b)(10), the statutory mechanism for filling a vacancy in the office of trustee. As such, Defendant contends the proceeding was a limited trust proceeding, not an administration of Decedent's estate. Defendant further argues Plaintiff cites no published California authority holding that a proceeding under Probate Code

section 17200, standing alone, constitutes an "estate administration" for purposes of Probate Code section 9352 or Code of Civil Procedure section 366.2. Accordingly, Defendant maintains the one-year statute of limitations was not tolled because Probate Code section 9352 applies only to creditor claims filed in the administration of a decedent's estate, not to a petition concerning the internal affairs of a trust under Probate Code section 17200. Defendant therefore contends Plaintiff's filing of a creditor's claim in the trust proceeding did not toll the limitations period, rendering the action barred by Code of Civil Procedure section 366.2. (Reply, pp. 2-4.)

The Court agrees. The judicially noticeable probate records in Case No. 24STPB00424 establish that the proceeding was initiated as a petition under Probate Code section 17200 to appoint a successor trustee. Although Plaintiff filed a creditor's claim in that proceeding on July 1, 2024, Plaintiff cites no authority, and identifies no evidence, demonstrating that the filing of a creditor's claim in a proceeding brought under Probate Code section 17200 constitutes an administration of a decedent's estate for purposes of Probate Code section 9352 or falls within one of the limited statutory exceptions set forth in Code of Civil Procedure section 366.2, subdivision (b). Accordingly, Plaintiff has not demonstrated that the filing of the creditor's claim extended or tolled the one-year limitations period. Because Plaintiff did not commence this civil action until December 30, 2024, more than one year after Decedent's death on December 9, 2023, the action is barred by Code of Civil Procedure section 366.2.

Given that the action is time barred by Code of Civil Procedure section 366.2. , the Court SUSTAINS the demurrer without leave to amend.

Motion to strike

Given that the demurrer is sustained without leave to amend, the motion to strike is DENIED as MOOT.

IV. ORDER

The Court SUSTAINS the entire demurrer to the FAC without leave to amend.

Defendants are to file a proposed judgment within ten days of this order.

Defendants are to give notice.

Dated: July 31, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT